

Mauritania 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Mauritania during the year.

Significant human rights issues included credible reports of: arbitrary or unlawful killings; arbitrary arrest or detention; serious restrictions on freedom of expression and media freedom, including unjustified arrests of journalists; and significant presence of any of the worst forms of child labor.

The government took steps to identify and punish officials who committed human rights abuses, but some officials acted with impunity.

Section 1. Life

a. Extrajudicial Killings

There were several reports the government or its agents committed arbitrary or unlawful killings during the year.

On July 1, protests occurred in cities across the country following circulation of a false social media message calling for celebrations of a supposed presidential election victory by a leading opposition candidate. In Kaedi, four men, Mbare Abdoulaye Diop, Harouna Mody Diallo, Abbas Hamady

Samba Niang, and Amadou Diobel, were arrested and taken into custody by gendarmes for taking part in the celebrations. The men died while in custody at the Kaedi gendarmerie on July 2. Representatives of the victims' families described conditions at the gendarmerie as "inhumane," with more than 30 detainees held in a cramped room without ventilation, deprived of water, and in scorching heat. There was no investigation of these deaths at year's end.

On March 20, a court sentenced four of eight defendants, all police officers including Police Commissioner Mokhtar Isselmou Siddou, to life imprisonment for torturing and causing the 2023 death of Soufi Ould Cheine. One policeman was sentenced to two years and three other defendants were found not guilty.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The constitution provided for freedom of expression, including for members of the press and other media, but the government arbitrarily and selectively

applied regulations to suppress individuals or groups of individuals who opposed government policies.

Individuals were generally free to criticize the government publicly but were occasionally subjected to retaliation. The constitution and law prohibited racial or ethnic propaganda; however, the government sometimes used these provisions against political opponents, accusing them of “racism” or “promoting national disunity” for speaking out against government mistreatment of marginalized populations, particularly the ethnocultural Haratine community and sub-Saharan groups.

The national symbols law criminalized criticism and derogatory comments regarding the country’s national symbols, including the flag, the national anthem, Islam, and the president. The law reinforced and expanded previous laws and decrees by including specific references to the use of digital media such as social media, WhatsApp messages, voice messages, and photographs, including images of security forces during demonstrations. Many nongovernmental organizations (NGOs) and human rights activists declared the law unduly restricted freedom of expression.

Authorities arrested persons for expressing political or religious views online that criticized the government. Most of the activists arrested were charged on the basis of content of their social media postings. Ould Samba, a Haratine community leader, publicly denounced racism and the exclusion of the descendants of slaves in government policies and actions via a video

blog on October 2 and directly criticized the actions of the president and senior government ministers. He was subsequently arrested under provisions of the national symbols law because his comments were viewed as critical of the actions of government officials. After Samba spent more than a month in jail, his legal team appealed to the Constitutional Council, asserting the national symbols law was unconstitutional and not in accordance with sharia. The Constitutional Council struck down a section of the law restricting the ability of citizens to criticize government employees, finding that it violated the principle of equality enshrined in the constitution.

The law also prescribed a mandatory death penalty for “blasphemous remarks” and “sacrilege” without the possibility of repentance or appeal. There were no reports of new prosecutions under the blasphemy law during the year. Since July 2023, Maria Cheikh Abdallahi Obed remained in pretrial detention in Nouakchott’s women’s prison on charges of “offending the prophet” and “using social media to harm the fundamental and sacred principles of Islam.” Obed was charged under the blasphemy and national symbol laws.

Physical Attacks, Imprisonment, and Pressure

Some journalists were subjected to violence, harassment, or intimidation by authorities. There were cases of arbitrary arrest and detention of journalists during the year.

During a May 7 demonstration, police attacked Alakhbar Agency photographer Mohamed Ould Isselmou as well as journalist Salek Zeïd, a representative of Reporters Without Borders, and confiscated their equipment. Police did not investigate the incident, and no disciplinary action was taken against the officers involved.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law allowed all workers, except police, members of the armed forces, and foreign and migrant workers, to form and join independent unions of their choice at local and national levels and provided for the right to conduct legal strikes and to bargain collectively. Other provisions and laws severely restricted or excessively regulated these rights. The government did not effectively enforce laws that allowed unions to conduct strikes.

Prior approval by authorities was required before a union could be recognized. The public prosecutor was required to authorize all trade unions before they could obtain legal status. The public prosecutor could provisionally suspend a trade union at the request of the Ministry of Interior if its officials believed the union did not comply with the law. The law also provided that authorities could initiate legal proceedings against union leaders who undermined public order or made false statements. This law authorized administrative authorities to dissolve, suspend, or deregister

trade union organizations unilaterally.

Noncitizens did not have the right to become trade union officials unless they worked in the country and in the profession represented by the trade union for at least five years. Labor unions were required to obtain government authorization to hold labor elections. Despite its promises, the government had not authorized union elections since 2014.

Collective bargaining at the national level required previous authorization or approval by the president, who decided how collective bargaining was organized. No such authorization was required for collective bargaining at the company level. The minister of labor, public service, and modernization of the administration could call for bargaining among employers, employees, labor unions, and the government. In addition, the ministry was entitled to take part in the preparation of collective agreements. The law provided that the meeting had to occur 15 days following a statement of nonagreement between parties. Some public service employees not governed by existing legislation had simple collective agreements but not the full range of collective bargaining rights.

The law provided for the right to strike. Aggrieved parties were required to follow complex procedures before conducting a strike. If negotiations between workers and employers failed to produce an agreement, the case was referred to the Court of Arbitration. If the court failed to broker a mutually satisfactory agreement, workers were required to wait up to four

additional months before they could legally strike, and the union was required to submit official notification to the employer that conciliation efforts had broken down. The law provided the government with authority to determine the legality of a strike but no right of appeal for unions. The government could dissolve a union for what it considered an illegal or politically motivated strike. The law prohibited workers from holding sit-ins or blocking nonstriking workers from entering work premises. The law required advance notice of one month for civil service unions and at least 10 working days in the private sector before a strike. The law prohibited certain types of strikes such as the peaceful occupation of workplaces or their immediate surroundings.

The government did not enforce the law effectively. Penalties for violations of freedom of association, collective bargaining, and the right to strike were less than those for analogous violations such as civil rights violations, and authorities seldom punished violators. The government ordered the reinstatement of workers who were wrongfully terminated or directed companies to improve employee benefits and services on several occasions. While antiunion discrimination was illegal, national human rights groups such as Women Heads of Households and unions reported authorities did not actively investigate alleged antiunion practices in some private firms. Collective bargaining at the company level remained rare.

Registration and strike procedures were subject to lengthy delays and

appeals. Labor ministry officials routinely issued notices calling on all parties to negotiate. Such notices legally restricted workers from striking for a period of four months. Workers and unions organized several strikes and, unlike in previous years, authorities did not employ force to disperse them.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

The law provided for a national minimum wage that was higher than the most recent estimate for the poverty income level. The law provided that the standard legal nonagricultural workweek could not exceed either 40 hours or six days per week. Domestic workers and certain other categories could work 56 hours per week. There were no legal provisions regarding compulsory overtime. Alleged violations of wage, hour, or overtime laws were common in domestic and household work and the agriculture, fishing, and mining sectors. *Tacheronnat*, a contractual system of nonbinding daily labor, remained widespread, although it was prohibited in a 2013 law. Tacheronnat intermediaries were the main recruiters in several sectors, including extractive industries, multinational companies, and the water, electricity, and transport sectors.

Occupational Safety and Health

The government set occupational safety and health (OSH) standards generally appropriate for the main industries in the country, and in principle workers had the right to remove themselves from hazardous conditions without risking loss of employment; however, this was rarely applied. OSH standards applied only to the formal sector, and labor inspectors rarely identified unsafe conditions or responded to workers' complaints. The International Labor Organization (ILO) reported the labor inspectorate was subject to undue influence by employers and the government, thereby reducing the effectiveness of inspection activity.

Alleged violations of OSH standards were common in mining, fishing, industrial, and construction sectors.

Wage, Hour, and OSH Enforcement

The Labor Office of the Ministry of Labor was responsible for enforcing wage, hour, and OSH laws but often failed to do so effectively. Penalties for wage, hour, and OSH violations were less than those for analogous violations such as fraud or negligence and were rarely applied against violators. The number of labor inspectors was sufficient for the labor force, and inspectors had the authority to make unannounced inspections. Private employers used foreign workers from neighboring countries and paid them low wages, which violated national labor policy that gave preference to

nationals of the country during recruitment.

Despite the ban of the tacheronnat system, trade union officials stated the subcontracting system continued to be practiced and negatively impacted the employment environment. Under this subcontracting practice, companies used private intermediaries to employ a local workforce under questionable working conditions including low wages and no benefits. According to trade union representatives, workers were often powerless, without the possibility to appeal a dispute. According to trade union workers, more than 2,000 cases of professional disputes were waiting to be processed in the labor courts, more than 120 cases of which were collective disputes involving many workers against their employer. The ports, construction, and mining sectors were the most affected by these violations.

According to the ILO, almost two-thirds of the population was not formally employed, partly due to the low level of participation of women in the workforce; more than 56 percent of the working population labored in the informal sector. The government did not enforce labor laws in the informal sector.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of

government authorities.

Prolonged Detention without Charges

The constitution prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their arrest or detention in court. The government did not always observe these requirements.

During the year authorities arbitrarily arrested and detained protesters, human rights activists, and journalists.

On June 29, police arrested four leaders of the nonrecognized Front for Change party, a party close to former president Mohamed Ould Abdel Aziz, for allegedly calling for a boycott of the June presidential election. The four detainees were released on July 11 without any charges.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution and law prohibited such practices, but there were credible reports government officials employed them.

On February 29, police fired tear gas and attacked protesters with batons to disperse a march organized by the National Union of Mauritanian Students in Nouakchott. A number of protesters were injured and required hospitalization as a result of police violence. Police did not investigate the incident, and no disciplinary action was taken against the officers involved.

Impunity was a serious problem within the security forces, particularly among the National Guard and the National Police. According to NGO observers, politicization, corruption, and ethnic tensions between security forces controlled by Beydane, ethnic Arabs known locally as White Moors, and Haratine and other Black sub-Saharan communities were primary factors contributing to impunity. Cases of alleged abuse were routinely investigated internally by security forces without referring them to judicial authorities, indicating a certain level of impunity within security forces. In some cases, authorities took steps to refer cases to criminal courts, but NGO observers expressed concern regarding the low number of indictments

handed down against officials accused of abuses.

The law prohibited female genital mutilation/cutting (FGM/C) of any kind, and it was punishable by imprisonment and a monetary fine. Authorities seldom applied the law due to lack of awareness of the law and traditional and religious beliefs surrounding the practice. According to the results of the *2019-21 Demographic and Health Survey* carried out by the National Statistics Office in collaboration with the Ministry of Health, 64 percent of women ages 15 to 49 and 45 percent of girls up to age 14 had undergone FGM/C. Approximately 58 percent of these procedures took place before age five.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

Child Marriage

The legal age of marriage was 18, but authorities rarely enforced the law and child marriage remained prevalent, primarily in rural areas. Child marriages were often unregistered with the government. Despite the law, local authorities reportedly often granted parents permission for their underage children to marry. Even so, the government worked with

international organizations and partners to implement programs combatting child marriage.

c. Protection to Refugees

The government cooperated with the Office of the UN High Commissioner for Refugees (UNHCR), the International Organization for Migration, and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, or asylum seekers, as well as other persons of concern. Resources provided by the government were inadequate to meet the assistance needs of these populations.

Provision of First Asylum

The law did not provide for granting of asylum or refugee status. UNHCR carried out refugee status determinations under its mandate and then presented cases to the National Consultative Commission on Refugees for recognition.

The government allowed nationals of West African states to remain in the country for up to three months, after which they were required to apply for residency or work permits.

On September 10, parliament approved a law amending certain provisions of the immigration law that strengthened the penalties for offenders and created mechanisms for their deportation.

Under a 2003 agreement with Spain, authorities received deported migrants, including Mauritanian citizens and third-country nationals, presumed to have transited the country en route to Spain's Canary Islands. This agreement was reportedly strengthened by an August migration agreement with Spain. The government reached a similar agreement with the European Union to receive some migrants and refugees rejected from European countries. The government immediately processed and transported these migrants to the Senegal and Mali borders without systematically screening for vulnerabilities or allowing international organizations to offer protective services. Authorities were, however, reportedly responsive to international organization requests for screening when civil society actors identified potential victims among the migrants.

d. Acts of Antisemitism and Antisemitic Incitement

There was no known Jewish community, and no reports of antisemitic incidents.